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LAWS2100 JURISPRUDENCE

LAWS8005 THEORIES OF LAW AND JUSTICE

Week 10 – The Moral Limits of the Law

Dr Andrea Dolcetti

Macquarie Law School

Structure

PART A

State coercion vs individual freedom

- The harm principle
- The offence principle
- Legal paternalism
- Legal moralism
- The welfare principle

PART B

The legal enforcement of morality

- The Hart-Devlin's debate
- Other liberal approaches
  - Rawls and Raz
- Two case studies:
  - Adult pornography
  - Voluntary Euthanasia

State coercion vs individual freedom

1. Prevention of harm to others
   - On **the harm principle**, see John Stuart Mill (1806 – 1873)
2. Prevention of offence
   - On **the offence principle**, see Joel Feinberg (1926 – 2004)
3. Prevention of harm to self (legal paternalism)
4. Prevention of immoral conduct (even when there is no harm/offence)
5. General welfare/public interest

→ Remember the distinction between **popular and critical morality**

→ From a liberal point of view, **the prevention of immorality in the absence of harm** is not a legitimate reason to limit our freedom

John Stuart Mill (1806 – 1873)

- *System of Logic* (1843)
- *Principles of Political Economy* (1848)
- ***On Liberty* (1859)**
  - **Struggle between authority and liberty**
- *Utilitarianism* (1861)
- *Considerations on Representative Government* (1861)
- *An Examination of Sir William Hamilton's Philosophy* (1865)
- ***The Subjection of Women* (1869)**
  - **Harriet Taylor Mill, *The Enfranchisement of Women* (1851)**

On Liberty (1859)

"**To the beloved and deplored memory of her who was the inspirer, and in part the author, of all that is best in my writings – the friend and wife whose exalted sense of truth and right was my strongest incitement, and whose approbation was my chief reward – I dedicate this volume.** Like all that I have written for many years, it belongs as much to her as to me; but the work as it stands has had, in a very insufficient degree, the inestimable advantage of her revision; some of the most important portions having been reserved for a more careful re-examination, which they are now never destined to receive. Were I but capable of interpreting to the world one half the great thoughts and noble feelings which are buried in her grave, I should be the medium of a greater benefit to it, than is ever likely to arise from anything that I can write, unprompted and unassisted by her all but unrivalled wisdom."

The Subjection of Women (1869)

"[The Subjection of Women] was written at my daughter's suggestion that there should be in existence a written exposition – as full and conclusive as I could make it – of my opinions on that great question. The intention was to keep this among other unpublished papers, improving it from time to time if I was able, and to publish it at the time when it seemed likely to be most useful. As ultimately published it was enriched with some important ideas of my daughter's and some passages of her writing. But **all that is most striking and profound in what was written by me belongs to my wife, coming from the fund of thought that had been made common to us both by our innumerable conversations and discussions on a topic that filled so large a place in our minds.**" (Mill's *Autobiography*)

John Stuart Mill's *On Liberty*

- Mill explores **the relation between authority and liberty**
- The function of liberal democratic states is to set limits to the power which the ruler/government can exercise over society
- These limits protect a space for individual liberty
- Everyone generally agrees that **there is a limit to the extent to which governments can interfere with our liberty and independence**
- Mill is interested in determining what the limits of the authority of the government ought to be, **whether physical force should be used in asserting that authority**, and whether public opinion about morality can be subject to legal regulation

Mill's harm principle

- According to Mill, "the only purpose for which power can be rightfully exercised over any member of a civilised community, against his will, is **to prevent harm to others**."
- Our own good (either physical or moral) is not a good enough reason to justify "compulsion and control, whether the means used be physical force in the form of legal penalties, or the moral coercion of public opinion".
- We are responsible to society and the state only for the aspects of our conduct that (may) harm other members of the community
- Over their own body and mind, **the individual is sovereign**
- According to Mill, "It is […] hardly necessary to say that this doctrine is meant to apply only to human beings in the maturity of their faculties."

Causing harm…

- The key idea is that of **harmful behaviour**
- It is not just a matter of affecting another person's interests
- In this context, causing harm involves infringing another person's interests that we are under a duty not to infringe
- Violation of a specific duty to the public
- Behaviour that causes perceptible hurt to a specific individual

→ Remember the link between interests, entitlements, and rights

The harm principle

- The harm principle states that the only legitimate use of state power over adult citizens is to prevent harm to others
- The state can legitimately stop A from assaulting B, even though this limits A's freedom of action, because it prevents harm to B and protects her/his security
- The state can also stop A from stealing B's property, thereby protecting B's freedom to use her/his property as (s)he wishes
- However, the state exceeds its proper limits if it tries to stop A from destroying her/his own property, or to protect another person from being offended
- Behaviour which is not harmful (or harms people with their consent, or harms only the actor himself) should not be punished – according to Mill, we should have perfect freedom to behave in such ways, no matter how "foolish, perverse, or wrong" our conduct may be

Justification for the harm principle

- The value of personal autonomy and the presumptive case for liberty
- The presumptive case for **liberty** is the idea that whatever we seem to think about freedom, we agree that it is something of **intrinsic value** for both the individual and society
- Mill argues that following the harm principle will bring **maximum happiness** in the long run because:
  - Experimentation with different kinds of lifestyles is valuable for the whole society, even though the majority may find these experiments in living unsavoury or offensive
  - Enjoying and exercising personal freedom is ‘one of the principal ingredients of human happiness’

Some problems with the harm principle

The harm principle conceives of harm in a very narrow way, as damage to a person or her property – arguably, it does not reach far enough

It is based on the idea that social interference is unjustified in a person's affairs that just concern herself/himself – but no person's affairs have effects only on that person

The harm principle does not address indirect harms, or kinds of offence that could become harm

The Offence Principle

According to Feinberg: “It is always a good reason in support of a proposed criminal prohibition that it would probably be an effective way of preventing serious offense...to persons other than the actor, and that it is probably a necessary means to that end... The principle asserts, in effect, that the prevention of offensive conduct is properly the state’s business”

- **The offence principle is deemed a supplement to the harm principle**
- In order to evoke the offense principle, two tests need to be met:
  - **The standard of universality**: for the offensiveness to justify coercion, it should be a reaction that could be expected from almost anyone chosen at random (i.e., regardless of sex, age, race, etc)
  - **The standard of reasonable avoidability**: You can only expect a response from the state with respect to certain behaviour if you cannot reasonably avoid such behaviour, or if avoiding the behaviour would be inconvenient for you

Legal Paternalism

- The principle of legal paternalism maintains that state coercion is justified to protect individuals from self-inflicted harm; or to guide people, whether they like it or not, toward their own good
- All states employ some elements of (soft) paternalism – e.g., by prohibiting people from consenting to their own disablement, or violent killing; the law of contract forbids to sell oneself into slavery
- Cases of hard paternalism are ones where the state intervenes for the person's own good
  - Some drug laws may be classified as either soft, or hard examples of state paternalism

The rationale for legal paternalism

1. The degree of probability that harm to oneself will result from a given course of action
2. The seriousness of the harm being risked
3. The degree of probability that the goal we want to reach will in fact result from the course of action
4. The value or importance of achieving that goal (how worthwhile is it?)
5. The necessity of the risk (is there a less risky way of achieving that goal?)

Legal moralism

- For legal moralism, the fact that a given behaviour is **immoral** is a legitimate reason to criminalise that behaviour
- **Popular morality vs critical morality**
  - If the majority considers certain conduct to be immoral/degrading, then it should be prohibited (see, e.g., Lord Patrick Devlin)
  - If certain conduct is really/objectively immoral, then it should be prohibited (see, e.g., Robert George)
- It is acknowledged that there are ***practical*** **limits** to the use of (criminal) law for moralistic reasons
- What are the ***moral*** **limits** of positive law?

The welfare principle

- The welfare principle is used to justify state intervention for the general welfare
- Consider those cases where the modern state has no choice but to force (usually by way of compulsory taxation) willing and unwilling citizens to support public projects that are in the public interest and which they may not necessarily benefit from
  - Is the welfare principle an example of legal paternalism?
  - It is a matter of social justice?

Part B

The legal enforcement of morality

The Hart-Devlin's debate

- Lord Devlin's version of legal moralism
- Robert George's version of legal moralism

Other liberal approaches

- John Rawls
- Joseph Raz

Two case studies:

- Adult pornography
- Voluntary Euthanasia

The legal enforcement of morality

Should our legal system enforce morality?

Moral wrongdoing and legal (criminal) wrongdoing

Is immorality sufficient for criminalisation?

Legal moralism (Herbert Hart vs Lord Patrick Devlin)

Lord Patrick Devlin's central claim is that if a given behaviour is immoral (by common standard), then the law-maker has a prima facie right to prohibit that behaviour

The key idea is immoral conduct should be criminalised even if it causes no harm/offence to the actor or to others

The Hart-Devlin debate

Report of the Departmental Committee on Homosexual Offences and Prostitution (aka the Wolfenden report, after Sir John Wolfeden, the chairman of the committee); UK, 1957

- The committee recommended that "homosexual behaviour between consenting adults in private should no longer be a criminal offence"

- Patrick Devlin, Maccabean Lecture in Jurisprudence at the British Academy, 'Morals and the Criminal Law' (1959)
- H.L.A. Hart, 'Immorality and Treason' (1959)
- H.L.A. Hart, *Law, Liberty and Morality* (1963)
- Patrick Devlin, *The Enforcement of Morals* (1965)
- H.L.A. Hart, *The Morality of the Criminal Law* (1965)

Devlin on morality and (criminal) law

- Popular morality is what is conventionally regarded as morally right by society (whereas critical morality is what is objectively right)
- According to Lord Devlin, the majority has the right to translate conventional moral judgments into criminal law
- Contra Mill, **Devlin argues that there is no principled distinction between the private sphere and the public sphere**
- Devlin argues that criminal law as it stands does not respect Mill's principle because there are many cases in which the criminal law punishes harmless behaviour and therefore enforces a moral principle for no reason other than it is right to do so
  - Violations of rights and offences against society
  - Voluntary euthanasia is prohibited because it threatens the sanctity of human life (which a fundamental moral principle)

Devlin's idea of morality

- Lord Devlin asks three questions:

(1) Has society the right to pass judgement on moral matters?

(2) If so, can society use the weapon of the law to enforce its judgements?

(3) Should society use the weapon of the law in all cases, or only in some?

- In relation to (1) and (2), Devlin argued that **shared moral beliefs** are necessary to society: without a shared morality the social order would break down
- Question (3) is a practical problem: in some cases, enforcing morality can be impractical (see, for example, adultery vs bigamy)

Devlin's "popular" version of legal moralism

- For Devlin, society has the right (1) to pass moral judgments and (2) to use the law to enforce these judgments
- How can one know what society's moral views are?
- According to Devlin, one should consider the issue from the point of view of the man in the street / the man in the jury box / the man on the Clapham omnibus
- **The reasonable man's moral judgments are a matter of common sense and feelings**
  - Intolerance, indignation, and disgust

Hart vs Devlin

- H.L.A. Hart, 'Immorality and Treason' (1959): "The most remarkable feature of Sir Patrick's lecture is his view of the nature of morality – the morality which the criminal law may enforce"
- Different ways to repudiate "the liberal point of view"
- Moral judgments between rationality and feelings
- "A real feeling of reprobation" – but **is morality a compound of intolerance, indignation, and disgust**?
- For Lord Devlin a collection if individuals becomes a society because they have (among other things) a shared or public morality
  - For Devlin, there are no limits to **legislation against immorality**, as there are no limits to **legislation against treason and sedition**

Hart on popular morality and criminal law

- According to Hart, there are multiple criteria to determine when individual liberty may be restricted
- Morality is not a seamless web
- According to Hart, we should ask two questions:

(1) Is this behaviour, which offends moral feelings, harmful (independently of its repercussion on the general moral code)?

(2) Is it true that, if we do not criminalise a given immoral behaviour, then we will jeopardise the whole fabric of morality and society?

→ Hart criticises Lord Devlin's comparison between suppression of sexual immorality and suppression of treason / subversive activity

The enforcement of morality and rational criticism

- According to Hart, Lord Devlin's view is open to a deeper criticism
- It must be possible to **rationally** assess the claim that a given immoral behaviour should be punished by law
- Reason, sympathetic understanding, and critical intelligence
  - Is general morality based upon ignorance, superstition, or misunderstanding?
  - Is there a false conception of the immoral practice as dangerous / hostile to society?
  - Are the misery and evil consequences of criminal punishment well understood?

George's "critical" version of legal moralism

- Robert P. George is McCormick Professor of Jurisprudence and Director of the James Madison Program in American Ideals and Institutions at Princeton University
- In his book *Making Men Moral: Civil Liberties and Public Morality* (Oxford University Press, 1993), Prof George agrees with Devlin that the law should protect our moral character by prohibiting vice, even if the conduct in question is harmless
- However, George takes the view that the moral standards which the law should enforce are to be found in **critical morality** (i.e., true, or objective morality), rather than in the majority's moral beliefs, since these beliefs may not be sound

Other liberal approaches to determining the moral limits of the law

John Rawls (1921 – 2002)

- John Rawls makes a distinction between the 'right' and the 'good': the right refers to the sphere of principles of justice, including the protection of rights; the good refers to the sphere of value
- **Rawls thinks that the state should be 'neutral' on all matters of the good life**
- For Rawls, the only justification for state interference is to prevent rights violations and to punish those who do violate the rights of others

Raz's liberal perfectionism

- Joseph Raz (1939 – 2022)
- Raz rejects Rawls's idea of state neutrality
- According to Raz, the state is entitled to (and should) promote intrinsically worthy ways of life and discourage intrinsically unworthy ways of life
- Raz is liberal perfectionist
- However, Raz thinks that the state should not use the criminal law to promote worthy ways of life or pursue perfectionist ideals
- Raz has no problem, however, with the state promoting virtue with non-coercive means (for instance, by taxing activities of which the majority disapproves)

Case study I: Adult pornography

Traditionally, the justifications for banning pornography were its offensiveness to the moral standards of the community or its tendency to deprave and corrupt

From the liberal perspective, these justifications suffer from the flaw that that they are obviously moralistic and do not aim to prevent harm: if the enjoyment of sexually explicit material is a private matter, then it should not be prohibited by law

Cf. Catharine MacKinnon and Andrea Dworkin:

- Distinction between erotica and pornography
- The issue is not preventing an allegedly immoral yet harmless action
- Pornography harms women and infringes women's right to equality

Case study II: Voluntary euthanasia

Voluntary euthanasia is carried out at the request of an adult person of sound mind

Non-voluntary euthanasia is performed on someone who is not capable of understanding the choice between life and death

Passive euthanasia involves intentionally letting someone die

Active euthanasia involves a positive act of killing

→ Adults in full command of their mental capacities have the right to refuse life-sustaining treatment, but cannot ask to be actively killed

→ Does the choice of voluntary, active euthanasia harmful? Does it violate the rights of others?